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Case Number: 26STCV00379 Hearing Date: August 10, 2026 Dept: 509

Jacie Ruelas Corey v. Cedars-Sinai Medical Center, et al.

(1) DEMURRER TO FIRST AMENDED COMPLAINT

(2) MOTION TO STRIKE

MOVING PARTY: Defendants Cedars-Sinai Medical Center; Maurice M. Garcia, M.D.; and Lisa Silva

RESPONDING PARTY(S): Plaintiff Jacie Ruelas Corey

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Jacie Ruelas Corey brings this action against her medical provider defendants Cedars-Sinai Medical Center; Maurice M. Garcia, M.D.; Michael D. Harris, M.D.; and Lisa Silva Plaintiff alleges that Defendants failed to provide appropriate care during her treatment at defendants' facilities. Plaintiff brings different causes of actions against each defendant.

As to Cedars-Sinai Medical Center: (1) negligence; (2) sex-based discrimination / hidden agenda; and (3) harm to health through delay of needed specialty care / unprofessional administrative conduct.

As to Michael D. Harris, M.D.: (1) professional negligence / medical malpractice; and (2) negligent infliction of emotional distress (NIED).

As to Maurice M. Garcia, M.D: (1) professional negligence / medical malpractice; and (2) misrepresentation and contradiction in medical records; and (3) unprofessional and inappropriate conduct causing harm.

As to Lisa Silva: (1) negligence (scheduling access); (2) harm to health through delay of needed specialty care; and (3) unprofessional administrative conduct, interference, and evasion.

Defendants Cedars-Sinai Medical Center (Cedars); Maurice M. Garcia, M.D. (Garcia); and Lisa Silva (Silva, collectively, Defendants) demurrer to all causes of actions in the first amended complaint filed April 7, 2026 (FAC) and moves to strike portions therein. [FN 1] Plaintiff opposed.

TENTATIVE RULING:

Cedar's Demurrer to the Second Cause of Action for Sex Discrimination is SUSTAINED. Whether leave to amend is granted will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

Cedar's Demurrer to the First and Third Causes of Action is SUSTAINED WITHOUT LEAVE TO AMEND.

Garcia's Demurrer is SUSTAINED IN ITS ENTIRETY WITHOUT LEAVE TO AMEND.

Silva's Demurrer is SUSTAINED IN ITS ENTIRETY WITHOUT LEAVE TO AMEND.

Defendants' Motion to Strike is MOOT.

Moving parties are ordered to give notice.

DISCUSSION:

Demurrer to Complaint

I. Meet and Confer

In the June 9, 2026, hearing, the Court relieved Defendants of their meet and confer obligation for this motion.

II. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Pro. § 430.30, subd. (a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Ibid.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, at p. 747.) "We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.App.3d 584, 591.) A "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law." (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

III. Analysis

Defendants demur to all causes of action in the FAC.

1. First Cause of Action for Negligence (Against All Defendants)

In order to state a claim for negligence, Plaintiff must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (*McIntyre v. Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671.)

a. Professional Malpractice (Medical Malpractice) Against Cedars and Garcia

The elements of a professional negligence medical malpractice cause of action are: "(1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence." (*Borrayo v. Avery* (2016) 2 Cal.App.5th 304, 310 (quoting *Hanson v. Grode* (1999) 76 Cal.App.4th 601, 606.)

As an initial matter, Plaintiff's FAC fails to allege sufficient facts to support a cause of action. As to Cedars, Plaintiff alleges "Defendant breached that duty by failing to recognize the incident, failing to correct the confusion caused by the two doctors' malpractice, and failing to restore Plaintiff's access to Neurology, Hematology/Oncology, and Endocrinology care." (FAC at p. 3/12.) As to Harris, "Defendant breached that duty by failing to properly evaluate urgent lab markers and symptoms, failing to order appropriate further testing, failing to coordinate needed specialty care, failing to properly manage prescriptions, and repeatedly mischaracterizing Plaintiffs diagnosis and medical condition in the record." (FAC at p. 6/12.) And finally, as to Garcia, "Defendant created, used, or allowed false, misleading, and contradictory medical records concerning Plaintiff's diagnosis, anatomy, and reason for treatment and surgery." (FAC at p. 8/12.) However, with each allegation of medical malpractice there appears no relationship between the alleged negligent conduct and any resulting injury. Even if these acts rose to a breach of professional duty, there are no allegations of any specific harm that impacted Plaintiff as a result. Plaintiff merely alleges "Plaintiff suffered physical harm, worsening health, emotional distress, medical confusion, and damages according to proof." (FAC at p. 8/12.) There are no facts as to any actual loss or damage resulting from any the correlating conduct.

Further, this cause of action is time barred on the face of the FAC. A demurrer should be sustained where "the complaint shows on its face that the statute [of limitations] bars the action." (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1315.) "[T]he defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred." (*Id.* at p. 1316.) The court must determine which statute of limitations applies and when the claim accrued. (*Ibid.*)

Code of Civil Procedure, section 340.5 provides that "[i]n an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first." (Code Civ. Proc., § 340.5.) "[W]hen a plaintiff asserts a claim against a health care provider on a legal theory other than professional negligence, courts must determine whether the claim is nonetheless based on the health care provider's professional negligence, which would require application of MICRA." (*Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 347 (emphasis in original).) Whether the limitations period pursuant to section 340.5 applies depends on the nature or gravamen of the claim, not the label or form of action. (See *Ibid.*) Here, even though the first cause of action against Cedars is labeled general negligence, the gravamen of the claim is professional negligence on behalf of its providers.

Therefore, the negligence claims against Cedars and Garcia must be brought within three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first. (Code Civ. Proc., § 340.5.) Here, Plaintiff's allegations must have arisen out of the interactions between Defendants from July 11, 2024, and "September 30, 2024, during Plaintiff's last visit with Defendant." (FAC at p. 6/12.) From a reading of the allegations as a whole, it appears relatively clear that Plaintiff was aware of these allegations at the time of the occurrence with no actionable events taking place later than September 30, 2024. As a result, the time to file a timely action for professional malpractice was September 30, 2025. Plaintiff did not file this instant action until January 7, 2026, making this instant action untimely.

Accordingly, Cedars and Garcia's Demurrer to the First Cause of Action for Negligence is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) As this action is barred on statute of limitations grounds, it appears there is no reasonable possibility of successfully amending this cause of action. As such, NO LEAVE TO AMEND IS GRANTED. [See Footnote 2]

b. Negligence (Scheduling Access) as to Silva

As to Silva, Plaintiff alleges "Defendant owed Plaintiff a duty to act reasonably in administrative scheduling access and continuity of care where such actions foreseeably affected Plaintiff's health." (FAC at p. 11/12.) "Defendant breached that duty by blocking, delaying, or failing to reasonably permit Plaintiff to schedule with the specialist needed for Plaintiff's condition." (Ibid.)

Here, the Court is unaware of any duty requiring an administrator to allow scheduling access as a matter of law. Further, to the extent this can be reasonably extrapolated as medical malpractice claim, this cause of action would fail on the statute of limitations grounds as discussed above.

Accordingly, Silva's Demurrer to the First Cause of Action is SUSTAINED WITHOUT LEAVE TO AMEND. [See Footnote 2]

2. Third Cause of Action for Sex-Based Discrimination (Against Cedars)

The elements of a claim for violation of the Unruh Civil Rights Act are (1) defendant is a business establishment, (2) defendant intentionally denied plaintiff accommodations, advantages, privileges, facilities, or services, (3) defendant was motivated to do so based on its perception that plaintiff belonged to a statutorily defined group, (4) plaintiff was harmed, and (5) defendant's conduct was a substantial factor in causing plaintiff's harm. (See Civ. Code, § 51; In re Cox (1970) 3 Cal.3d 205, 216.) "The objective of the Act is to prohibit businesses from engaging in unreasonable, arbitrary or invidious discrimination. Therefore, the Act applies not merely in situations where businesses exclude individuals altogether, but also where treatment is unequal." (Pizarro v. Lamb's Players Theatre (2006) 135 Cal.App.4th 1171, 1174, citations omitted.)

Here, Plaintiff alleges "Cedars-Sinai Medical Center, including its Department of Security, engaged in conduct showing possible sex-based discrimination or a hidden agenda against Plaintiff. Cedars-Sinai Department of Security harassed Plaintiff, escalated against Plaintiff, physically assaulted Plaintiff twice at two different Cedars-Sinai locations, and held Plaintiff against Plaintiff's will. During that time, Cedars-Sinai Department of Security looked through Plaintiff's medical records and took pictures of Plaintiff's medical records on their phones." (FAC. at p. 2/12.) Plaintiff further alleges, "Defendant, through its Department of Security and related conduct, targeted Plaintiff in a manner showing sex-based discrimination or a hidden agenda against Plaintiff. Defendant's security staff harassed Plaintiff, physically assaulted Plaintiff twice at two different Cedars-Sinai locations, held Plaintiff against Plaintiffs will, and intruded into Plaintiff's private medical information by looking through and photographing Plaintiff's medical records. This conduct denied Plaintiff full and equal access to safe medical treatment and caused further injury and distress." (FAC at p. 3/12.)

However, there are no facts demonstrating Cedars intentionally denied Plaintiff accommodations, advantages, privileges, facilities, or services based on her sex. Indeed, the only such allegation is that Cedars "engaged in conduct showing possible sex-based discrimination." (FAC at p. 2/12, emphasis added.) As a "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law" Plaintiff's cause of action is deficient. (S. Shore Land Co. v. Petersen, supra, 226 Cal.App.2d at p. 732 (internal citations omitted).)

Accordingly, Cedars' Demurrer to the Second Cause of Action for Sex-Based Discrimination is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) Whether leave to amend is granted will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

3. Remaining Causes of Actions

Defendants further demurr to the remaining causes of action: (1) Third Cause of Action for harm to health through delay of needed specialty care / unprofessional administrative conduct against Cedars; (2) Second Cause of Action for harm to health through delay of needed specialty care against Silva; (3) Third Cause of Action for unprofessional and inappropriate conduct causing harm as to Garcia; and (4) the Third Cause of Action for unprofessional administrative conduct, interference, and evasion as to Silva.

As an initial matter, none of these causes of action states a cognizable cause of action. A demurrer would therefore be proper as to these causes of action. (Code Civ. Pro. §§430.10, subd. (e) and (f).)

However, these causes of action appear to allege the identical allegations that form the basis for Plaintiff's causes of action for medical malpractice. Therefore, the Court may treat these causes of action to be causes of action for medical malpractice. (See Best v. California Apprenticeship Council (1987) 193 Cal.App.3d 1448, 1463 ["[T]he labeling of a pleading is not determinative, but rather the subject matter of the action is to be determined from its allegations, regardless of what they may be called."]) Nevertheless, the Court must reach the same conclusion as it did in the prior medical malpractice causes of action and find they are likewise barred by the applicable statute of limitations as discussed above.

Accordingly, Defendants' Demurrer to the remaining causes of action is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) As this action is barred on statute of limitations grounds, it appears there is no reasonable possibility of successfully amending these causes of action and no leave to amend is given. [See Footnote 2]

Motion to Strike

Because the demurrer is SUSTAINED in its entirety, the motion to strike is MOOT.

IT IS SO ORDERED.

Dated: August 10, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Of note, Harris is not a moving party and has not currently been served in this action.

FN 2 - Be as that may, Plaintiff will be given an opportunity at the hearing to either: (1) Argue why this tentative ruling is incorrect; and/or (2) Make a sufficient offer of proof as to how this cause of action can be potentially amended consistent with this ruling.